

2018 P L C (C.S.) 806

[Lahore High Court]

Before Jawad Hassan, J

BASHARAT ALI

Versus

MUHAMMAD AMIN VAINS

Crl. Orgl. No.94210-W of 2017, decided on 8th May, 2018.

Constitution of Pakistan---

---Art. 204---Contempt proceedings, initiation of---Contention of petitioner was that he was medically fit for appointment and did not have colour blindness but police authorities had not appointed him---Petitioner had filed contempt petition for non-compliance of order passed by the High Court in constitutional petition---Validity---Issue of colour blindness might be an impediment in the way of investigation of crime---Said issue despite direction of the High Court had not been resolved---High Court constituted Special Medical Board to examine the petitioner with regard to issue of colour blindness and submit report---Petition was disposed of accordingly.

Muhammad Javed Butt for Petitioner.

Sultan Mehmood A.A.G.

Atiq Ahmad, Chief Consultant, Services Hospital, Lahore.

Asif Ali Sheikh, DSP (Legal) and Ahmad Usman, Inspector (Legal), CCPO Office, Lahore.

ORDER

JAWAD HASSAN, J.---Through the instant petition the Petitioner has sought a penal action against the Respondent for non-compliance of order dated 25.09.2017 passed by this Court in W.P. No.76755 of 2017 in letter and spirit.

2. Learned counsel for the Petitioner submits that the Petitioner is medically fit and does not have any disease of colour blindness and in this respect he has got conducted his test from M.S. of Mian Munshi, DHQ Hospital, Lahore and has been declared fit for appointment.

3. It is observed here that keeping in view the contentions of the learned counsel for the Petitioner this Court, on 08.01.2018 directed the Petitioner to appear before the Standing Medical Board of Services Hospital, Lahore for his test regarding his colour blindness. In pursuance of the said order dated 08.01.2018 the concerned authority submit report but the same does not reflect the core issue whether the Petitioner is colour blind or not. Keeping in view this aspect this Court again vide orders dated 19.03.2018 and 02.05.2018 ordered that some medical expert/ophthalmologist from Services Hospital, Lahore shall appear before the

Court and clarify the requirement of vision for the appointment of the Petitioner. In pursuance of the above referred orders of this Court, Dr. Atiq Ahmad, Chief Consultant, Services Hospital, Lahore appeared and stated that the colour blindness is a permanent deficiency in which a person with that deficiency cannot distinguish between the shades of Green, Red and Blue colours. He also stated that colour blindness occurs when anybody is unable to see colours in a normal way. It is also known as colour deficiency and the colour blindness often happens when . someone cannot distinguish between certain colours. This usually happens between greens and reds, and occasionally blues. He further stated that there are different degrees of colour blindness, some people with mild colour deficiencies can see colours normally in good light but have difficulty in dim light and others cannot distinguish certain colours in any light. Lastly, he stated that the colour blindness usually affects both eyes equally and remains stable throughout life however, the change in colour vision can signify a more serious condition.

4. The learned Law Officer submitted that the petitioner was directed to get himself medically examined from Services Hospital but he obtained the report from Mian Munshi, DHQ Hospital, Lahore which cannot be relied upon. He further states that Section 12.16 of the Police Rules, 1934 (the "Rules") deals with the issue in hand which clearly states that every recruit shall, before enrolment, be medically examined and certified physically fit for service by the Civil Surgeon. He also stated that a certificate, in the prescribed form (Form No.10.64), signed by the Civil Surgeon personally, is an essential qualification for enrolment. He laid much stress on the point that police force has very important role in the society and they have to follow very hard and fast rules while recruitment to avoid any type of deficiencies including the colour blind. He further stated that the examination by the Civil Surgeon is necessary to be conducted in accordance with the instructions issued by the medical department and he will test the eyesight, speech and hearing of the candidate, his freedom from physical defects, organic or contagious disease, or any other defect or tendency likely to render him unfit, and his age. He also contended that APPENDIX No.12.16 of the Rules shows that the recruit must be able to read the Test Dot Card which is required standard of vision. The conditions of police service make it necessary that the medical examination of candidates should be strict. Candidates shall be rejected for any disease or defect which is likely to render them unfit for the full duties of a police officer. He further added that the Petitioner has also not appeared before the Board constituted for the said purpose, as such, he is not liable to be appointed in the Police Department due to his colour blindness.

5. There is no doubt that the Police Department has a very important role in the society, hence the Law enforcement is the group of people tasked with the prevention of crime and apprehension of offenders. As part of law enforcement, police officers have four major responsibilities: i. enforcing laws; ii. preventing crimes; iii. responding to emergencies; and providing support services. The crime prevention has been one of the primary mandates of police organizations since the establishment of the police agency. The police agencies relied on three core operational strategies for preventing and controlling crime: random preventive patrol, rapid response to calls-for-service from citizens, and investigation of criminal offenses. The issue of colour blindness may be the impediment in the way of investigation of a crime, therefore, this issue has to be taken very seriously.

6. Whereas on the other hand despite various directions issued by this Court, prima facie still the issue of colour blindness of the Petitioner is not resolved. To mitigate the further litigation

and in the interest of justice, this Court deems appropriate to constitute a Special Medical Board comprising the following:

Chairman

Most Senior Professor of ophthalmology of Teaching Hospital/Services Hospital, Lahore.

Members

- i. Dr. Atiq Ahmad, Chief ophthalmologist, Services Hospital Lahore.
- ii. Dr. Nisar Ahmed Sheikh, Consultant ophthalmologist/Head of Eye Department, Govt. M.M. DHQ, Teaching Hospital, Lahore.
- iii. Police representative.

E-Biometric Device for identification of the Petitioner/candidate.

7. The above referred Board shall convene its meeting for the minute examination of the Petitioner regarding the issue of colour blindness and shall submit its clear report about the colour blindness of the petitioner or otherwise within a fortnight positively to this Court through Deputy Registrar (Judicial). With this direction the instant petition stands disposed of. The learned Law Officer shall ensure the compliance of this order within the stipulated period. It is pertinent to mention here that both the parties mutually agreed to accept the decision of the Board either way.

ZC/B-3/L Order accordingly.